

SOLICITATION, OFFER AND AWARD			1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 7900)		RATING		PAGE 1 OF 61 PAGES		
2. CONTRACT NUMBER		3. SOLICITATION NUMBER N0017325RDH03		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		5. DATE ISSUED		6. REQUISITION/PURCHASE NUMBER N0017325PR00336	
7. ISSUED BY NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW WASHINGTON DC 20375-5328 United States				CODE N00173		8. ADDRESS OFFER TO (If other than item 7) NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 United States			

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION	
9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in until 12:00 PM EST local time 8/18/2025 (Hour) (Date)	
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.	
10. FOR INFORMATION CALL: A. NAME DEIRDRE HUGHES B. TELEPHONE (NO COLLECT CALLS) AREA CODE 202 NUMBER 9231490 EXTENSION C. E-MAIL ADDRESS deirdre.l.hughes.civ@us.navy.mil	

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OFFER (Must be fully completed by offeror)	
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.	
12. In compliance with the above, the undersigned agrees, if this offer is accepted within calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.	

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)		10 CALENDAR DAYS (%)		20 CALENDAR DAYS (%)		30 CALENDAR DAYS (%)		CALENDAR DAYS(%)	
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NO.		DATE		AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFER-OR		CODE		FACILITY		16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)			
15B. TELEPHONE NUMBER		AREA CODE		NUMBER		EXTENSION		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	
								17. SIGNATURE	
								18. OFFER DATE	

AWARD (To be completed by Government)					
19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 2304 (c) ☐ 41 U.S.C. 3304(a) ()				23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	
24. ADMINISTERED BY (If other than Item 7)				25. PAYMENT WILL BE MADE BY CODE	
26. NAME OF CONTRACTING OFFICER (Type or print) Jason Calandruccio				27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
				28. AWARD DATE	

Section A - Solicitation/Contract Form

Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	BASE YEAR LABOR - The contractor shall furnish all labor required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition," included as Attachment 1. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
0002	BASE YEAR OTHER DIRECT COSTS (ODCs) - The contractor shall furnish necessary ODCs including travel and materials/equipment required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition" included as Attachment 1. ODCs shall be billed exclusive of fee. Travel will be IAW limitations set forth in FAR 31.205-46 and Joint Travel Regulations. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
0003	BASE YEAR DATA AND REPORTS - The Contractor shall furnish all data as required by the Contract Data Requirements List, DD Form 1423, which is hereby incorporated as Exhibit A. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 1001	OPTION I LABOR - The contractor shall furnish all labor required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition," included as Attachment 1. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
	OPTION I OTHER DIRECT COSTS (ODCs) - The contractor shall furnish necessary ODCs including travel and materials/equipment required to accomplish the requirements contained in the Statement of Work (SOW) entitled,				

Option Line Item 1002	"Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition" included as Attachment 1. ODCs shall be billed exclusive of fee. Travel will be IAW limitations set forth in FAR 31.205-46 and Joint Travel Regulations. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 1003	OPTION I DATA AND REPORTS - The Contractor shall furnish all data as required by the Contract Data Requirements List, DD Form 1423, which is hereby incorporated as Exhibit A. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 2001	OPTION II LABOR - The contractor shall furnish all labor required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition," included as Attachment 1. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 2002	OPTION II OTHER DIRECT COSTS (ODCs) - The contractor shall furnish necessary ODCs including travel and materials/equipment required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition" included as Attachment 1. ODCs shall be billed exclusive of fee. Travel will be IAW limitations set forth in FAR 31.205-46 and Joint Travel Regulations. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 2003	OPTION II DATA AND REPORTS - The Contractor shall furnish all data as required by the Contract Data Requirements List, DD Form 1423, which is hereby incorporated as Exhibit A. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		

Option Line Item 3001	OPTION III LABOR - The contractor shall furnish all labor required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Engineering Support for EO/IR Measurements and Simulations," included as Attachment 1. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 3002	OPTION III OTHER DIRECT COSTS (ODCs) - The contractor shall furnish necessary ODCs including travel and materials/equipment required to accomplish the requirements contained in the Statement of Work (SOW) entitled, "Camouflage Netting and Expeditionary Lifting Structures, Operational Test Support, and Joint Technology Transition" included as Attachment 1. ODCs shall be billed exclusive of fee. Travel will be IAW limitations set forth in FAR 31.205-46 and Joint Travel Regulations. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		
Option Line Item 3003	OPTION III DATA AND REPORTS - The Contractor shall furnish all data as required by the Contract Data Requirements List, DD Form 1423, which is hereby incorporated as Exhibit A. Pricing Arrangement: Firm Fixed Price PR Number: NOPR PR Line Item Number: 0001	1	Lot		

Section C - Description/Specifications/Statement of Work

Requirements

The services to be performed hereunder shall be subject to the requirements and standards contained in Attachment 1 - Statement of Work, Exhibit A - Contract Data Requirements List, and all other attachments cited in Section J, which are incorporated by reference into Section C.

Section D - Packaging and Marking

D-1 PRESERVATION, PACKAGING, PACKING, AND MARKING

All unclassified data and deliverable contract line items shall be preserved, packaged, packed and marked and must conform to normal commercial packing standards to assure safe delivery at destination.

D-2 UNCLASSIFIED AND CLASSIFIED MARKING

Unclassified data shall be prepared for shipment in accordance with requirements set forth in the contract, or if none are specified, pursuant to industry standards.

Classified reports, data, and documentation shall be prepared for shipment in accordance with 32 CFR Part 117, National Industrial Security Program Operating Manual (NISPOM) and the DD254 - Contract Security Classification Specification (Attachment 2).

D-3 MARKING OF SHIPMENTS AND REPORTS

The Contractor shall mark all shipments under this contract in accordance with the addition of ASTM-D-3951-18 "Standard Practice for Commercial Packaging" in effect on the date of the contract. The Contractor shall comply with FED STD 313 (Material Safety Data, Transportation Data, and Disposal Data for Hazardous Materials Furnished to Government Activities) to the extent applicable.

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

Name and business address of the Contractor: *

Contract number: *

***To be completed at contract award.**

Section E - Inspection and Acceptance

E-1 INSPECTION AND ACCEPTANCE

Inspection and acceptance of the final delivery will be accomplished by the Contracting Officer Representative (COR) designated in Section G of this contract. Inspection and acceptance will be performed at the Naval Research Laboratory, 4555 Overlook Ave. SW, Washington, DC 20375-5320.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-9	Inspection of Research and Development (Short Form).	Apr 1984		
52.246-16	Responsibility for Supplies.	Apr 1984		

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
0002	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
0003	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY

	4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: None

	DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
	Inspection and Acceptance Location

Option Line Item 3002	Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: None DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Code 5009 Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272

Section F - Deliveries or Performance

F-1 SHIP TO INFORMATION

All deliverables required under this contract shall be shipped FOB Destination, Naval Research Laboratory, 4555 Overlook Ave. SW, Washington, DC 20375-5320.

All shipments delivered by the Contractor to the Government under this contract shall include the following "Attention To" on the shipping label:

*, COR

Naval Research Laboratory, 4555 Overlook Ave. SW, Washington, DC 23075-5320

Contract Number: *

Building: *

Code: *

*To be completed at contract award.

F-2 PLACE OF PERFORMANCE

The primary place of performance will be the Naval Research Laboratory, 4555 Overlook Ave. SW, Washington, DC 20375.

F-3 GOVERNMENT FURNISHED PROPERTY (GFP)

When GFP is required, a list of the GFP will be incorporated into this contract via an attachment following contract award, along with the following information:

The GFP will be provided by: * [date]

The Government shall deliver the GFP to the following address: * [location]

Upon completion of the contract, the GFP will be returned to: * [location or TBD]

*To be completed at contract award.

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 30 Sep 2025 to 29 Sep 2026 Period of Performance From 30 Sep 2025 To 29 Sep 2026	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
	Delivery Period	1 Lot	Ship To

0002	From 30 Sep 2025 to 29 Sep 2026 Period of Performance From 30 Sep 2025 To 29 Sep 2026		DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
0003	Delivery Period From 30 Sep 2025 to 29 Sep 2026 Period of Performance From 30 Sep 2025 To 29 Sep 2026	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 1001	Delivery Period From 30 Sep 2026 to 29 Sep 2027 Period of Performance From 30 Sep 2026 To 29 Sep 2027	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 1002	Delivery Period From 30 Sep 2026 to 29 Sep 2027 Period of Performance	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272

	From 30 Sep 2026 To 29 Sep 2027		
Option Line Item 1003	Delivery Period From 30 Sep 2026 to 29 Sep 2027 Period of Performance From 30 Sep 2026 To 29 Sep 2027	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 2001	Delivery Period From 30 Sep 2027 to 29 Sep 2028 Period of Performance From 30 Sep 2027 To 29 Sep 2028	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 2002	Delivery Period From 30 Sep 2027 to 29 Sep 2028 Period of Performance From 30 Sep 2027 To 29 Sep 2028	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
	Delivery Period From 30 Sep 2027 to 29 Sep 2028	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328

Option Line Item 2003	Period of Performance From 30 Sep 2027 To 29 Sep 2028		WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 3001	Delivery Period From 30 Sep 2028 to 29 Sep 2029 Period of Performance From 30 Sep 2028 To 29 Sep 2029	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 3002	Delivery Period From 30 Sep 2028 to 29 Sep 2029 Period of Performance From 30 Sep 2028 To 29 Sep 2029	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272
Option Line Item 3003	Delivery Period From 30 Sep 2028 to 29 Sep 2029 Period of Performance From 30 Sep 2028 To	1 Lot	Ship To DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Scott Ramsey, Head, Signature Technology Office Email: scott.a.ramsey30.civ@us.navy.mil Telephone: (202) 279-5272

	29 Sep 2029		
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FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.247-34	F.o.b. Destination.	Nov 1991		

Section G - Contract Administration Data

G-1 CONTRACT ADMINISTRATION

In order to expedite administration of this contract, the following delineation of duties is provided, including the names and contact information, for each individual or office specified. Contact the individual/position designated as having responsibility for any questions, clarifications or information regarding the functions assigned herein.

(a) Contract Specialist: Deirdre Hughes; deirdre.l.hughes.civ@us.navy.mil
 Contracting Officer: Jason Calandruccio; jason.d.calandruccio.civ@us.navy.mil
 NRL Competition Advocate: *
 Security Matters: Security Branch, Code 1226; (202) 767-2240; security-group@nrl.navy.mil
 Safety Matters: Head Safety Branch, Code 3540; (202) 767-2232; safety@nrl.navy.mil

Intellectual Property Matters: All subject inventions must be properly reported through the iEdison system at <https://www.nist.gov/iedison> as described in the award terms. For questions, please contact Associate Counsel (Intellectual Property), Code 1008.2; (202) 404-1558; patents@nrl.navy.mil

Release of Data: Public Affairs Officer, Code 1030; nrlpao@nrl.navy.mil. For FOIA information, see <https://www.nrl.navy.mil/Contact-Us/FOIA/>.

(b) The Contract Administration Office (CAO) designated in Block 24 on the Standard Form 33 is responsible for all matters specified in FAR 42.302(a) and DFARS 242.302(a), except in those areas otherwise designated herein.

(c) Contract administration functions withheld, additional contract administration functions assigned, or special instructions are set forth below:

Not Applicable

*To be completed at contract award.

G-2 CONTRACTING OFFICER'S REPRESENTATIVE - FUNCTIONS AND LIMITATIONS

(a) *; ** is hereby designated as the COR. Unless terminated sooner, this appointment is effective for the period of performance of this contract including any options, if exercised. COR authority may not be re-delegated. No change in COR assignment shall be made without written notice by the Contracting Officer, who will modify the contract to reflect the change of COR assignment. The Contracting Officer may designate assistant or alternate COR(s) to act for the COR by naming such assistant /alternate(s) in writing and transmitting a copy of such designation to the Contractor via contract modification.

(b) The responsibilities and limitations of the COR are as follows:

- (1) Providing technical direction and guidance as necessary with respect to the performance of work under this contract. Technical direction and guidance may be used to provide technical advice/recommendations/clarifications on the Statement of Work (SOW) /specifications. It MAY NOT be used to tell the Contractor how to perform the work.
- (2) Submitting interim and final Contractor Performance Assessment Reports (CPARS) at www.cpars.csd.disa.mil/cparsmain.htm.
- (3) Quality assurance of services performed or deliveries made
- (4) Inspection and acceptance of services or deliverables
- (5) Ensuring that GFP, including any Contractor use of on-site equipment and/or IT resources, is adequately monitored and accounted for.
- (6) Security requirements on Government installation, such as the request and retrieval of personnel security badges and vehicle passes.
- (7) Monitoring Contractor's performance and promptly report problems and recommendations for corrective action to the PCO
- (8) Annually, furnish a written report on performance of the Contractor to the PCO. And, if deemed necessary, attending a follow-up meeting to discuss.
- (9) Attend post award conference, if conducted.

(10) Ensuring a copy of all Government technical correspondence, to include Technical Direction Memorandums/Guidance, is forwarded to the PCO for placement in the contract file.

(11) Monitoring of funds expended

(12) Ensuring that the Contractor does not exceed the defined SOW set forth in the contract.

(c) Limitations: The COR is not authorized to take any action, either directly or indirectly, that could result in a change in the cost/price, quantity, quality, place of performance, delivery schedule, or any other terms or conditions of the contract. If, as a result of technical discussions, it is desirable to alter contract obligations or the statement of work/specifications, a modification must be issued in writing and signed by the Contracting Officer in order to effect such changes. No such changes shall be made without the express written prior authorization/direction of the Contracting Officer.

*Name of COR to be filled in at contract award.

**Email address of COR to be filled in at contract award.

G-3 TECHNICAL DIRECTION MEMORANDUM (TDM)

(a) For the purposes of this clause, technical direction includes the following:

(1) Direction to the Contractor which shifts work emphasis between work areas or tasks, requires pursuit of certain lines of inquiry, fills in details or otherwise describes work which will accomplish the objectives described in the SoW;

(2) Guidelines to the Contractor, which assist in interpretation of drawings, specifications or technical portions of, work description.

(b) Technical instructions must be within the scope of work stated in the contract. Technical instructions may not be used to:

(1) Assign additional work under the contract:

(2) Direct a change as defined in the contract clause entitled "Changes";

(3) Increase or decrease the estimated contract cost, the fixed fee, or the time required for contract performance; or

(4) Change any of the terms, conditions or specifications of the contract

(c) The TDM shall be written by the Contracting Officer's Representative (COR), with the original given to the Contractor and a copy retained in the CORs file. Technical direction may be issued orally only in emergency situations. If technical direction is issued orally, a TDM must follow within two (2) working days from the date of the oral direction. Amendments, corrections, or changes to TDMs shall also be in written format and shall include all the information set forth in paragraph (e) below.

(d) A TDM shall be considered issued when the Government deposits it in the mail, or if transmitted by other means, when it is physically delivered to the Contractor.

(e) TDMs shall include, at a minimum, the following information:

(1) Date of TDM,

(2) Contract Number,

(3) Reference to the relevant portion or item in the SoW,

(4) The specific technical direction or clarification,

(5) The type of work to be performed, i.e., (a) SETA support or (b) R&D work,

(6) A reference to the appropriate CLIN or SubCLIN,

(7) The anticipated level of effort, materials and travel expected as a result of the TDM,

(8) The JON, Program Element, and associated dollar amount, and

(9) The signature of the COR

(f) CORs shall provide a copy of each TDM with the necessary increment of funds to the Contracting Officer for retention in the official contract file. CORs shall retain all files containing TDMs for a period of two (2) years after the final contract completion date.

(g) The only individual authorized in any way to amend or modify any of the terms of this contract shall be the Contracting Officer.

When, in the opinion of the Contractor, any technical direction calls for effort outside the scope of the contract or inconsistent with this special clause, the Contractor shall notify the Contracting Officer in writing within ten (10) working days after its receipt.

G-4 IDENTIFICATION OF CONTRACTOR PERSONNEL ON-SITE AT NRL

Pursuant to DFARS 211.106, contractor employees shall identify themselves as contractor personnel by introducing themselves or being introduced as contractor personnel and displaying distinguishing badges or other visible identification for meetings with Government personnel. In addition, contracts shall require contractor personnel to appropriately identify themselves as contractor employees in telephone conversations and in formal and informal written correspondence.

G-5 ELECTRONIC AND INFORMATION TECHNOLOGY (EIT)

In accordance with Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d), all EIT supplies and services provided under any resulting award must comply with the applicable accessibility standards issued by the Architectural and Transportation Barriers Compliance Board at 36 CFR part 1194 (see FAR Subpart 39.2). Electronic and information technology (EIT) is defined at FAR 2.101.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice/Receiving Report (Combo)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>TBD</u>
Issue By DoDAAC	<u>N00173</u>
Admin DoDAAC	<u>TBD</u>
Inspect By DoDAAC	<u>N00173</u>
Ship To Code	<u>N00173</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N00173</u>

Service Acceptor (DoDAAC)	<u>N00173</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

* To be completed at contract award.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H-1 KEY PERSONNEL

(a) The Contractor agrees to assign to the contract tasks those persons whose resumes were submitted with its proposal and who are necessary to fulfill the requirements of the contract as "key personnel". No substitutions may be made except in accordance with this clause.

(b) The Contractor understands that during the first ninety (90) days of the contract performance period, no personnel substitutions will be permitted unless these substitutions are unavoidable because of the incumbent's sudden illness, death or termination of employment. In any of these events, the Contractor shall promptly notify the Contracting Officer and provide the information described in paragraph (c) below. After the initial ninety (90) day period the Contractor must submit to the Contracting Officer all proposed substitutions, in writing, at least thirty (30) days in advance (sixty (60) days if security clearance must be obtained) of any proposed substitution and provide the information required by paragraph (c) below.

(c) Any request for substitution must include a detailed explanation of the circumstances necessitating the proposed substitution, a resume for the proposed substitute, and any other information requested by the Contracting Officer. Any proposed substitute must have qualifications equal to or superior to the qualifications of the incumbent. The Contracting Officer or his/her authorized representative will evaluate such requests and promptly notify the Contractor of his/her approval or disapproval thereof.

(d) In the event that any of the identified key personnel cease to perform under the contract and the substitute is disapproved, the contract may be immediately terminated in accordance with the Termination clause of the contract.

(e) Named Key Personnel are as follows:

Employee Name Key Labor Category

* Program Manager IV - A

* Chief Scientist IV - B

** To be filled in at contract award.*

H-2 GOVERNMENT PROPERTY

a. Government-Furnished Property. Government-furnished property, data, or services shall be identified, if applicable.

b. Contractor Acquired Property. In the event the contractor is required to purchase property in the performance of this contract, compliance with the procedures of FAR Part 45.402, Government Property, is required.

c. Disposition of Government Property. Thirty (30) days prior to the end of the period of performance, or upon termination of the contract, the contractor shall furnish to the COR a complete inventory of all Government Property in their possession under the contract that has not been tested to destruction, completely expended in performance, or incorporated and made a part of a deliverable end item. The COR will furnish disposition instructions on all listed property which was furnished or purchased under this contract.

H-3 NOTICE OF INCORPORATION OF SECTION K

Section K of the solicitation (Representation, Certifications and Other Statements of Offerors) will not be distributed with the contract; however it is incorporated in and forms a part of the resultant contract as though furnished in full text therewith.

H-4 SPECIAL CONTRACT REQUIREMENT REGARDING NON-DISCLOSURE OF INFORMATION

Data includes all data, information and software, regardless of the medium (e.g. electronic or paper) and/or format in which the data exists, and includes data which is derived from, based on, incorporates, includes or refers to such data. In the course of performing this Contract, the Contractor may be or may have been given access to: Source Selection Information [as defined in Federal Acquisition Regulation (FAR) 3.104]; data that has been assigned (or data that is generated by the Contractor that should be assigned) a contractually required or other Government distribution control (such as a Distribution Statement prescribed in DoD Directive 5230.24); and/or data that has been given a restrictive legend by the source of the data such as "business sensitive," "proprietary," "confidential," or word(s) with similar meaning that impose limits on the use and distribution of the data (see for example FAR 52.215-1(e)). All such data with limitations on use and distribution are collectively

referred to herein as "protected data."

This Special Contract Requirement supplements and implements Defense FAR Supplement (DFARS) 252.204-7000, "DISCLOSURE OF INFORMATION." As a condition to receiving access to protected data, the Contractor shall: (1) prior to having access to protected data, obtain the agreement of the source of the protected data to permit access by the Contractor to such protected data; (2) use the protected data solely for the purpose of performing duties under this Contract unless otherwise permitted by the source of the protected data; (3) not disclose, release, reproduce or otherwise provide or make available the protected data, or any portion thereof, to any employee of the Contractor unless and until such employee has been informed of the restrictions on use and distribution of the protected data and agreed in writing to conform with the applicable restrictions; (4) not disclose, release, reproduce or otherwise provide or make available the protected data, or any portion thereof, to any non-Government person or entity (including, but not limited to, affiliates, subcontractors, successors and assignees of the Contractor), unless the Contracting Officer and the source of the protected data have given prior written approval (which shall be conditioned upon the person receiving the protected data having been informed of the restrictions on use and distribution of the protected data and having agreed in writing to conform with the applicable restrictions; (5) establish and execute safeguards to prevent the unauthorized use or distribution of protected data.

Any unauthorized use, disclosure or release of protected data may result in substantial criminal, civil and/or administrative penalties to the Contractor or to the individual who violates a restriction on use or distribution of protected data. Any agreement with another company regarding access to that company's protected data shall not create any limitation on the Government or its employees with regard to such data. A copy of each executed company and individual non-disclosure agreement relating to this Contract shall be provided to the COR.

Appropriate restrictive legends will be included by the Contractor on any copies and reproductions made of all or any part of the protected data and any data that is derived from, based upon, incorporates, includes or refers to the protected data. When the Contractor's need for such protected data ends, the protected data shall be returned promptly to the source of the protected data with notice to the COR. However, the obligation not to use, disclose, release, reproduce or otherwise provide or make available such protected data, or any portion thereof, shall continue, even after completion of the Contract, for so long as required by the terms of any agreement pertaining to the protected data between the Contractor and the source of the protected data, or (in the case of Government information) for so long as required by applicable law and regulation. Any actual or suspected unauthorized use, disclosure, release, or reproduction of protected data or violation of this agreement, of which the company or any employee is or may become aware, shall be reported promptly (within one business day after discovery and confirmation) to the COR.

H-5 ORGANIZATIONAL CONFLICT OF INTEREST

(a) Definitions.

The term "contractor" includes the Contractor and its employees, affiliates, marketing consultants (if any), consultants, and subcontractors at all tiers.

"Organizational Conflict of Interest" ("OCI") means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. FAR 2.101.

An OCI may result when (1) activities or relationships create an actual or potential conflict of interest related to the performance of the Statement of Work (SOW) of this Contract; or, (2) when the nature of the SOW on this Contract creates an actual or potential conflict of interest with respect to the Contractor in relation to a future acquisition.

"Marketing consultant," means any independent contractor who furnishes advice, information, direction, or assistance to an offeror or any other contractor in support of the preparation or submission of an offer for a Government contract by that offeror.

An independent contractor is not a marketing consultant when rendering-- (1) Services excluded in FAR Subpart 37.2; (2) Routine engineering and technical services (such as installation, operation, or maintenance of systems, equipment, software, components, or facilities); (3) Routine legal, actuarial, auditing, and accounting services; and (4) Training services.

(b) In accordance with the guidance in FAR Subpart 9.5, the Contracting Officer has determined that potentially significant organizational conflicts of interest (OCIs) could result if the Contractor is allowed to participate (at any level) in future Federal Government acquisitions that include requirements that may be established or affected by the performance of the SOW by the Contractor under this Contract.

(c) It is understood and agreed that the Contractor may be ineligible (unless expressly exempted as provided in FAR Part 9.5) to act as a prime contractor, subcontractor, or consultant or subcontractor to any prime contractor or subcontractor at any tier, for

any future requirements (for services, systems, or components of systems) procured by any Federal Government activity where the Contractor, in performance of the SOW under this Contract, has provided or is providing support (as described in FAR 9.505-1 through 9.505-4) that establishes or affects future requirements or may affect the future competition

(d) The contracting officer responsible for securing future requirements, in his/her sole discretion, may make a determination to exempt the Contractor from ineligibility as described in subparagraph (c) above provided the Contractor submits an acceptable mitigation plan.

(1) Items for consideration in a mitigation plan include the following: identification of the organizational conflict(s) of interest; a reporting and tracking system; an organizational conflict of interest compliance/enforcement plan, to include employee training and sanctions, in the event of unauthorized disclosure of sensitive information; a plan for organizational segregation (e.g., separate reporting chains); data security measures; and, non-disclosure agreements.

(2) The Government's determination regarding the adequacy of the mitigation plan or the possibility of mitigation is a unilateral decision made solely at the discretion of the Government and is not subject to the Disputes clause of the contract. The Government may terminate the contract for default if the Contractor fails to implement and follow the procedures contained in any approved mitigation plan.

(3) Nothing contained herein shall preclude the contracting officer in future Federal Government acquisitions from making his/her own determination as to whether an OCI exists and whether any such OCI has been successfully mitigated.

(e) The Contractor shall apply this clause to any subcontractors or consultants who: have access to proprietary information received or generated in the performance of this Contract; and/or, who participate in the development of data, or participate in any other activity related to this Contract which is subject to the terms of this clause at the prime contractor level.

(f) The Contractor agrees that it and its subcontractors at all levels shall use reasonable diligence in protecting proprietary data/information that is received or generated in performance of this Contract in accordance with this clause and any other clause of this Contract pertaining to the nondisclosure of information. The Contractor further agrees that neither it nor its subcontractors will willfully disclose proprietary data/information that is received or generated in the performance of this Contract without the prior permission of the Contracting Officer, and that proprietary information shall not be duplicated, used or disclosed, in whole or part, for any purpose other than to accomplish the work required by the Contract.

(g) The Contractor and its Subcontractors at all levels shall inform their employees that they are required to comply with the applicable requirements and restrictions contained in: restrictive markings applicable to data/information that they receive or generate in the performance of this Contract; FAR Subpart 9.5 pertaining to actual or potential OCIs; FAR 3.104 pertaining to requirements and restrictions under the Procurement Integrity Act; and, Defense FAR Supplement (DFARS) 252.204-7000 pertaining to "Disclosure of Information."

(h) The Contractor agrees to enter into written agreements with all companies whose proprietary data it shall have access to and to protect such data from unauthorized use or disclosure as long as it remains proprietary. The Contractor shall furnish to the Contracting Officer copies of these written agreements. The Contractor agrees to protect the proprietary data and rights of other organizations disclosed to the Contractor during performance of this Contract with the same caution that a reasonably prudent Contractor would use to safeguard its own highly valuable property. The Contractor agrees to refrain from using proprietary information for any purpose other than that for which it was furnished.

(i) The Contractor shall not distribute reports, data or information of any nature received or arising from its performance under this Contract, except as provided by this Contract or as may be directed by the Contracting Officer.

(j) The Contractor agrees that if in the performance of this Contract it discovers a potential OCI, a prompt and full disclosure shall be made in writing to the Contracting Officer. This disclosure shall include a description of the actions the Contractor has taken, or proposes to take, to avoid or mitigate such conflicts.

H-6 REPORT PREPARATION

Scientific or technical reports prepared by the Contractor and deliverable under the terms of this contract will be prepared in accordance with format requirements contained in ANSI/NISO Z39.18-2005 (R2010) Scientific and Technical Reports - Preparation, Presentation, and Preservation.

[NOTE: All NISO American National Standards are available as free, downloadable pdf(s) at <http://www.niso.org/standards/index.html>. NISO standards can also be purchased in hardcopy form from NISO Press Fulfillment, P. O. Box 451, Annapolis Junction, MD 20701-0451 USA. Telephone U.S. and Canada: (877) 736-6476; Outside the U.S. and Canada: 301-362-6904 fax: 301-206-9789.]

H-7 INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal dated * , submitted in response to Solicitation N0017325RDH03, is hereby incorporated into the contract by reference. The Contractor shall perform the work substantially as set forth in this award. Any revisions to the technical proposal that would significantly alter the technical approach must be approved in writing by the Contracting Officer.

In the event of a conflict between the contract and the Contractor's technical proposal, the Contract shall take precedence.

*To be completed at contract award.

H-8 CURRENT AND PENDING PROJECT AND PROPOSAL SUBMISSIONS:

Performers are required to provide information on all current and pending support for ongoing projects and proposals, including subsequent funding in the case of continuing contracts, grants, and other assistance agreements. Applicants shall provide the following information of any related or complementary proposal submissions from whatever sources (e.g., NRL, Federal, State, local or foreign government agencies, public or private foundations, industrial or other commercial organizations). Concurrent submission of a proposal to other organizations will not prejudice its review by NRL.

- Title of Proposal and Summary;
- Source and amount of funding (annual direct costs; provide contract and/or grant numbers for current contracts /grants);
- Percentage effort devoted to each project;
- Identity of prime applicant and complete list of sub-awards, if applicable;
- Technical contact (name, address, phone/fax, electronic mail address)
- Administrative/business contact (name, address, phone/fax, electronic mail address);
- Period of performance (differentiate basic effort);
- The proposed project and all other projects or activities requiring a portion of time of the Principal Investigator and other senior personnel must be included, even if they receive no salary support from the project(s);
- The total award amount for the entire award period covered (including indirect costs) must be shown as well as the number of person-months or labor hours per year to be devoted to the project, regardless of source of support; and\
- State how projects are related to the proposed effort and indicate degree of overlap.

H-9 CONTRACTUAL TERMS & CONDITIONS:

The terms and conditions herein constitute the entire contract and understanding of the parties and shall supersede all other communications, negotiations, arrangements and agreements, either oral or written, with respect to the subject matter hereof. All proposal documentation including, but not limited to, red line contract terms and conditions, red line statements of work and/or ground rules and assumptions are hereby void and carry no force or affect as it pertains to the interpretation or operation of the language of the instant contract nor should such language be used to provide meaning to any of the terms or conditions contained herein.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-12	Subcontractor Certified Cost or Pricing Data.	Jun 2020		
52.215-15	Pension Adjustments and Asset Reversions.	Oct 2010		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Jul 2005		
52.215-19	Notification of Ownership Changes.	Oct 1997		
52.215-23	Limitations on Pass-Through Charges.	Jun 2020		
52.219-8	Utilization of Small Business Concerns.	Jan 2025		
52.219-9	Small Business Subcontracting Plan.	Jan 2025		
52.219-16	Liquidated Damages-Subcontracting Plan.	Sep 2021		
52.222-3	Convict Labor.	Jun 2003		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.223-23	Sustainable Products and Services.	May 2024		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-2	Payments under Fixed-Price Research and Development Contracts.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by			

52.240-1	American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price.	Aug 1987		
52.243-6	Change Order Accounting.	Apr 1984		
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Jan 2025	Deviation 2025-O0003	Mar 2025
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-9	Default (Fixed-Price Research and Development).	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7000	Non-Estoppel	Oct 1966		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7014	Rights in Other Than Commercial Computer Software and Other Than Commercial	Jan 2025		
252.227-7020	Rights in Special Works.	Jun 1995		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.235-7011	Final Scientific or Technical Report.	Dec 2019		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.204-1 Approval of Contract. (Dec 1989)

Approval of Contract (Dec 1989)

This contract is subject to the written approval of the Contracting Officer and shall not be binding until so approved.

(End of clause)

52.217-8 Option to Extend Services.**(Nov 1999)**

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 6 months.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.**(Mar 2000)**

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 48 months.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation.**(Jan 2025)**

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-

(i) It [] is, [] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [_____] The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[_____] Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.243-7 Notification of Changes.

(Jan 2017)

Notification of Changes (Jan 2017)

(a) *Definitions.* "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this paragraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) *Notice.* The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within 5 (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state-

- (1) The date, nature, and circumstances of the conduct regarded as a change;
- (2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;
- (3) The identification of any documents and the substance of any oral communication involved in such conduct;
- (4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;
- (5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including-
 - (i) What line items have been or may be affected by the alleged change;
 - (ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;
 - (iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;
 - (iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and
- (6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) *Continued performance.* Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(d) *Government response.* The Contracting Officer shall promptly, within _____ (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-

- (1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;
- (2) Countermand any communication regarded as a change;
- (3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or

(4) In the event the Contractor's notice information is inadequate to make a decision under paragraphs (d)(1), (2), or (3) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) Equitable adjustments.

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made-

(i) In the contract price or delivery schedule or both; and

(ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs (b) and (c) of this clause.

Note: The phrases "contract price" and "cost" wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) - <https://www.acquisition.gov/browse/index/far> Defense Federal Acquisition Regulation Supplement (DFARS) - <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html> Navy Marine Corps Acquisition Regulation Supplement (NMCARS) - <https://www.secnav.navy.mil/rda/DASN-P/Pages/NMCARS.aspx>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.235-7010 Acknowledgment of Support and Disclaimer.

(May 1995)

ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER (MAY 1995)

(a) The Contractor shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this contract, stated in the following terms: This material is based upon work supported by the Naval Research Laboratory under Contract No. TBD,

(b) All material, except scientific articles or papers published in scientific journals, must, in addition to any notices or disclaimers by the Contractor, also contain the following disclaimer: Any opinions, findings and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the Naval Research Laboratory.

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	CDRLS	Contract Data Requirements List (CDRL)	CDRLS	09 Jul 2025	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	RFP - Attachment 1 - SOW Final	Statement of Work	STATEMENT OF WORK (SOW)	09 Jul 2025
02	DD254	Contract Security Classification Specification (DD 254)	DD254	09 Jul 2025
03	PERSONNEL QUALIFICATIONS (PQs)		PERSONNEL QUALIFICATIONS (PQs)	09 Jul 2025
04	PAST PERFORMANCE QUESTIONNAIRE		PAST PERFORMANCE QUESTIONNAIRE	09 Jul 2025
05	COST_PRICE SPREADSHEET		COST/PRICE SPREADSHEET	09 Jul 2025

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (Jan 2025)

Annual Representations and Certifications (Jan 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541715.

(2) The small business size standard is 1000 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

- (A) The acquisition is to be made under the simplified acquisition procedures in part 13;
- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

- (A) Are not set aside for small business concerns;
- (B) Exceed the simplified acquisition threshold; and
- (C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) Reserved.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below *[offeror to insert changes, identifying change by clause number, title, date]*. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

**REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY
FEDERAL LAW (FEB 2016)**

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2024) Alternate A (Oct 2024)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[] (i) Paragraph (e) applies.

[] (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions.

(Jan 2025)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) *Definitions.* As used in this provision-

"Computer software" is defined in-

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in-

(1) The 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished With Restrictions ¹			Name of Person Asserting Restrictions ⁴
	Basis for Assertion ²	Asserted Rights Category ³	
<u>TBD</u> (LIST) ⁵	<u>TBD</u> (LIST)	<u>TBD</u> (LIST)	<u>TBD</u> (LIST)

¹ For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date	_____
Printed Name and Title	_____

Signature	_____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section L - Instructions, Conditions, & Notices to Offeror

L-1 SECURITY REQUIREMENTS

Access to classified information is not required to submit a proposal for this effort. However, prospective Offerors shall have the required facility clearance in accordance with attached DD254 (Attachment 2) and, at a minimum, key personnel available with final DoD granted personnel security clearances required for performance of the contract at the time of proposal submission. Offerors shall make a statement of compliance with all security requirements set forth in the attached DD254. An inability to meet security requirements at the time of proposal submission will result in an offer being deemed nonresponsive and eliminated from the competition.

L-2 GOVERNMENT-FURNISHED PROPERTY (GFP)

GFP is not anticipated to be required for the performance on this contract.

L-3 INQUIRIES CONCERNING THE RFP

Offerors may submit inquiries, questions or comments relating to this solicitation within 7 calendar days from the solicitation issue date via email to the Contract Specialist and Contracting Officer as follows:

Ms. Deirdre Hughes; deirdre.l.hughes.civ@us.navy.mil, and
Mr. Jason Calandruccio; jason.d.calandruccio.civ@us.navy.mil

The e-mail subject line shall read: "N0017325RDH03_Questions"

All proposals shall be submitted via email to the Contract Specialist and Contracting Officer as follows:

Ms. Deirdre Hughes; deirdre.l.hughes.civ@us.navy.mil, and
Mr. Jason Calandruccio; jason.d.calandruccio.civ@us.navy.mil

Proposals submitted in any other method than email will not be accepted.

Offerors choosing to submit a proposal must do so by the closing date and time provided in Block 9 of the SF33. Offerors are responsible for ensuring the Government's receipt of a complete proposal by the closing date and time. To be timely, the proposal must be received in its entirety in the designated email inbox by the closing date and time provided in Block 9 of the SF33. A proposal that resides on a Government email server, but has not appeared in the designated email inbox by the due date and time provided in Block 9 of the SF33 will be considered late unless the exception at FAR 52.215-1(c)(3)(ii)(A)(1) applies.

The Government will consider all correspondence, but will not issue individual responses; instead, if appropriate, a solicitation amendment and/or responses will be issued via SAM.gov. No questions will be accepted via phone. Individual meetings with firms will not be scheduled. Voicemails with questions and/or requests for meetings will not receive a response. Questions received after 14 calendar days may not be answered. Offerors are cautioned against directing any questions concerning this RFP to technical personnel at the Naval Research Laboratory.

All proposals shall be submitted in accordance with FAR 52.215-1- Instructions to Offerors - Competitive Acquisition.

Due to file size limitations, it is recommended that the Offeror submit proposals in separate emails. Each email shall identify the solicitation number, Offeror name, volume number, and series number of the email in the subject line so the Government can easily determine whether all emails have been received (e.g. RFP #_Offeror Name_Vol. #_series # of #):
"N0017325RDH03_XXX_Vol. I_1 of 5"

For planning purposes, the anticipated award date for this solicitation is 30 September 2025.

L-4 PROPOSAL CONTENT

In presenting material in the proposal, the Offerors are advised that quality of information is more important than quantity. Clarity, brevity, and logical organization should be emphasized during proposal preparation. It is the responsibility of the Offeror to present enough information to allow for a meaningful evaluation, without the need for discussions. The Offeror shall include any data necessary to illustrate the adequacy of the various assumptions, knowledge and understandings of the SOW. Unnecessary elaborate brochures or other presentation materials beyond that sufficient to present a complete and effective proposal is neither necessary nor desired.

(a) Proposal Acceptability

Comprehensive responses to the requirements of this RFP are required to enable the Government to evaluate the Offeror's understanding of, capabilities, and approaches to accomplish the stated requirements. Proposals shall be submitted in accordance with the instructions herein, and nonconformance with the specified required content may be cause for rejection of the proposal. Offerors are advised that material submitted in excess of that required herein will not be evaluated.

The Offeror's proposal must include all data and information requested by this RFP and it must be submitted in accordance with these instructions. The Offer shall be compliant with the requirements as stated in the RFP, SOW, Contract Data Requirements List (CDRL) and all other attachments.

The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The proposal should not simply rephrase or restate the Government's requirements, but rather shall provide convincing rationale to address how the Offeror intends to meet these requirements. Offerors shall assume that the Government has no prior knowledge of their facilities and experience, and will base its evaluation entirely on the information presented in the Offeror's proposal with the exception of past performance information.

(b) The proposal shall be valid for no less than 180 days from the date of RFP closing. The Offeror shall make a clear statement that the proposal is valid until the applicable date as referenced in the RFP.

L-5 PROPOSAL ORGANIZATION

The Offeror shall prepare the proposal as set forth in the Proposal Organization Table below. The titles and contents of the volumes shall be as defined in this table below, all of which shall be within the required page limits specified. The contents of each proposal volume are described in the paragraphs noted below:

Proposal Volume	Volume Title	Page Limit**	Electronic Copies***
Volume I	Technical	40 pages	1
Volume II	Price	No Limit	1
Volume III	Contact Information	1 Page	1

**Each Volume, including Cover Letter, shall be in the following format: "Volume #_Company Name"*

***Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read or considered and will not be*

included in the evaluation of the proposal. Each page shall be counted except for the following: cover pages, table of contents, cross reference tables, tabs, glossaries, acronym lists, subcontractor/teaming agreements, past performance questionnaires, Contractor Performance Assessment Reporting System (CPARS) reports, staffing plans, resumes and letter of commitments.

****File packaging of electronic documents. All of the proposal files shall be submitted as separate uploads in their native format (e.g. doc, xls, ppt, pdf, etc.). All price breakout information to aid in the cost/price evaluation shall be submitted in Microsoft Office Excel Read/Write format, with all formulas intact, and viewable in Microsoft Excel 2010 or higher.*

(a) PAGE SIZE AND FORMAT

Page size shall be 8.5 x 11 inches. Pages shall be single spaced. Except for the reproduced sections of the solicitation document the text size shall be no less than 12 point font. Use at least 1 inch margins on the top and bottom and each side. Pages shall be numbered sequentially by volume. In the header of all pages, the Offeror shall include the following information: RFP #, volume # and title, and page #.

Legible tables, charts, graphs, and figures shall be used wherever practical to depict organizations, systems and layout, implementation schedules, plans, etc. These displays shall be uncomplicated, legible, and shall not exceed 11 X 17 inches in size. For tables, charts, graphs and figures the text shall be no smaller than 8 points.

These limitations shall apply to **the electronic copy of the proposal (no hard copies are requested)**, except for the Volume III - Cost Spreadsheet (Excel). Provide intact Microsoft Office Excel formulas in any spreadsheets. Within all Excel spreadsheets, the Offeror shall use formulas and functions to the maximum extent possible and avoid using output type "value only" cells. Spreadsheets shall not be protected.

No hyperlinks shall be allowed within the proposal. Proposals shall not be supplemented by any additional package or reference documents.

(b) CLASSIFIED INFORMATION

Proposals shall not contain classified information.

(c) INDEXING

Each volume shall contain a more detailed table of contents to delineate the subparagraphs (one-level) within that volume. Tab indexing shall be used to identify sections and do not count against the page limitations for their respective volumes.

(d) GLOSSARY OF ABBREVIATIONS AND ACRONYMS

Each volume shall contain a glossary of all abbreviations and acronyms used, and with an explanation for each. Glossaries do not count against the page limitations for their respective volumes.

(e) COST OR PRICING DATA

All cost or pricing data shall be addressed ONLY in the Cost/Price Proposal (Volume III) and Contract Information (Volume IV). Cost trade-off information, work hour estimates, and material kinds and quantities may be used in other volumes only as appropriate for presenting rationale for alternatives or design and trade-off decisions.

L-6 PROPOSAL VOLUME CONTENTS

It is the sole responsibility of the Offeror to ensure its proposal conforms to all solicitation requirements.

COVER LETTER

The proposal volumes discussed below shall be accompanied by a cover letter (letter of transmittal), identifying the Offeror's name, address, Unique Entity Identification number (UEI#), Cage Code, business size, contact information for personnel authorized to negotiate and sign contract documents with respect to your proposal, and all enclosures being transmitted. It shall be used only to transmit the proposal and shall include no other information. The cover letter should be in accordance with FAR 52.215-1(c)(2).

VOLUME I - TECHNICAL PROPOSAL

The Technical Volume shall be organized according to the following general outline:

- (a) Table of Contents
- (b) List of Tables and Drawings
- (c) Glossary
- (d) Technical Proposal addressing:

Factor 1 - Technical Understanding, Capability, and Approach

Factor 2 - Management Capability

Factor 3 - Staffing and Personnel Qualifications

FACTOR 1: TECHNICAL UNDERSTANDING, CAPABILITY, AND APPROACH

The Offeror shall address each of the following technical task areas separately, demonstrating its capability, knowledge, and approach to performing the following technical task areas as it relates to the SOW:

Task Area 1 - Project Management

Task Area 2 - System Engineering

Task Area 3 - Research & Development

Task Area 4 - Systems Manufacture

Task Area 5: Test & Evaluation

Offerors are encouraged to discuss key/critical aspects and challenges associated with the proposed tasks along with its strategy to address/mitigate.

Offerors are encouraged to provide a narrative description that clearly demonstrates the company's knowledge on projects of similar size, scope and complexity to the proposed task areas. The documentation should be sufficient to support both the prime and any subcontractors' breadth and depth of knowledge as it relates to the SOW and should clearly demonstrate the relationship between the company's knowledge and the tasks required; prior or current programs in the areas; and technical understanding of the proposed task requirements.

While not all encompassing, the narrative description should include examples of specialized knowledge, capabilities, and qualifications, such as internal initiatives, certifications, training programs, Government or private industry contracts, joint research projects, participation in industry organizations, and membership in Government councils or other applicable venture. Proposal content that appear to be unreasonable, unrealistic, unsupported, unclear, and/or deficient will be evaluated IAW Section M. Offerors are encouraged to identify technical uncertainties and assumptions within the requirements set forth in this solicitation and provide specific courses of action for their resolution. Offerors are cautioned that failure to provide the necessary information may result in their ratings being downgraded accordingly.

FACTOR 2: MANAGEMENT CAPABILITY

The Offeror shall include in its proposal a Contract Management Plan (CMP) defining the contractor's approach to implementing the contract. In the CMP, the Offeror shall address its overall management approach and ability to plan, manage,

and execute all efforts required by the SOW, including, but not limited to, Project Management, System Engineering, Research & Development, Systems Manufacture, Test & Evaluation (as applicable) and subcontract management. The Offeror shall describe processes to be used by technical leadership to ensure specific subtasks are being performed effectively and efficiently.

The Offeror shall provide a narrative description of its management experience on projects with scientific, engineering, and technical efforts similar to those required in the SOW. This description should clearly demonstrate how the contractor's prior management plans and efforts have supported its ability to meet performance requirements, cost, and schedule goals on projects of similar size and complexity.

FACTOR 3: STAFFING AND PERSONNEL QUALIFICATIONS

Staffing Approach -

To allow the Government to understand the Offerors approach to providing and retaining a qualified workforce, the Offeror shall address the following:

- (a) Address your approach to ensuring a technical understanding of the requirements by your hiring manager;
- (b) Describe potential challenges in finding hard to fill labor categories that could occur and risk mitigation which enables your company to interview and select qualified technical personnel;
- (c) Describe your approach to retaining highly qualified personnel;
- (d) Describe the approach and provide convincing evidence that the company has, or has the ability to obtain, the non-key personnel as described in the Personnel Qualifications document (Attachment 3).

Key Personnel:

Attachment 3 - Personnel Qualifications includes all labor categories needed for the duration of period of performance known at this time. The following table identifies Key Personnel. The Offeror shall submit one resume per Key Personnel identified IAW Attachment 3, as well as a statement to the percentage of time the Key Personnel will be assigned and working on the contract.

The Offeror shall not submit resumes for non-key personnel.

Required Key Personnel Resumes (# of resumes):

LABOR CATEGORY
Program Manager (1)
Chief Scientist (1)

Each resume shall contain, at a minimum, the following information:

- Employee name
- Current level of security clearance (i.e. TS/SCI, TS, Secret w/ SSBI, Secret, or none) and status
- Current position, title, and employer
- Job titles, employer, and dates, to include the month and year, of employment experience in reverse chronological order, and a narrative description of duties and responsibilities
- Educational history: Degrees and certifications earned, including the institution name, name/title of degree or certification earned, and year for all degrees or certifications earned

The Government may check educational background to verify degrees or certifications received. If the qualification (i.e. education, experience, and clearance) does not readily or easily compare to the minimum required qualification stated in the Personnel Qualifications document, the Offeror shall provide an explanation as to the equality of the proposed qualification to meet the minimum required qualification.

Subcontract agreements and/or Letters of Intent (LOI) shall be provided for all consultants, subcontractors, and personnel not currently on staff if fulfilling a Key Personnel position.

Resumes, subcontract agreements, and LOIs do not count against page limit.

VOLUME II - PAST PERFORMANCE

FACTOR 4: PAST PERFORMANCE

The Past Performance Volume shall be organized according to the following general outline:

- (a) Table of Contents
- (b) Glossary
- (c) Introduction
- (d) Questionnaires and/or CPARS reports
- (e) Previous Contracting Narratives

In addition to the below, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to, past performance information retrieved through CPARS and the Federal Awardees Performance and Integrity Information System, using the CAGE codes of the Offeror and any team members (subcontractors, partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the Offeror's proposal, and any other known sources not provided by the Offeror. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate, and complete past performance information rests with the Offeror.

QUESTIONNAIRES AND/OR CPARS REPORTS

Offerors shall provide Past Performance Questionnaires (PPQ) (Attachment 4) and/or CPARS Reports with their proposal for a maximum of three recent and relevant efforts either completed or ongoing within the last five years as of the date of this solicitation release.

If an Offeror anticipates utilizing a subcontractor, teaming arrangement, joint venture, etc., the Offeror may submit PPQs and/or CPARS Reports for the subcontractor, teaming partner, etc., but the maximum of three recent efforts still applies. The contracts identified should demonstrate in-depth knowledge and successful implementation of contracts of similar scope and complexity to this solicitation. Similar scope and complexity means having performed the types of support efforts identified in the SOW associated with this solicitation. The identified contracts can be with Federal, Commercial, or other customers. For each contract, the Offeror shall identify at least one customer Point of Contact (POC) and their respective email address.

In order to expedite the assessment process, the Offeror may complete the "Contract Information" portion of the PPQ for the convenience of the customer POC. The Offeror shall not, however, complete any other section of the PPQ. The questionnaire shall be provided to the customer POC with instructions to complete and submit it directly to the Contract Specialist on or before the proposal due date. Electronic submission is the only acceptable method.

The Government reserves the right to limit or expand the number of references it decides to contact and to contact other references than those provided by the Offeror. The Government reserves the right to consider any questionnaire received after the due date and contact those offices that do not respond to the questionnaire. However, it's ultimately the sole responsibility of the Offeror to ensure PPQs are completed and submitted by their customer POCs.

PREVIOUS CONTRACTING NARRATIVES

For each of the PPQs and/or CPARS Reports submitted, the Offeror shall also provide a Previous Contracting Effort Narrative detailing the following information in Volume II:

- (a) The Offeror shall describe how the scope for this past contract relates to this solicitation in size, scope, and complexity.
- (b) The Offeror should provide performance criteria/measures that were applied in evaluating performance for this past contract.

LABOR CATEGORY	KEY PERSONNEL	SITE	YEAR 1 HOURS	YEARS 2 HOURS	YEAR 3 HOURS	Year 4 HOURS
Program Manager	Yes	Ktr	2500	2500	2500	2500
Chief Scientist	Yes	Ktr	2500	2500	2500	2500
Systems Engineer	No	Ktr	5000	5000	5000	5000
Technical Designer	No	Ktr	5000	5000	5000	5000
Quality Inspector	No	Ktr	5000	5000	5000	5000
Logistician	No	Ktr	3500	3500	3500	3500
Seamstress	No	Ktr	8500	8500	8500	8500
TOTAL LABOR HOURS:			32000	32000	32000	32000

NOTE: 1,920 hours is used a full time equivalent (FTE).

OTHER DIRECT COSTS (ODC) -

ODC will be included in the total evaluated cost. ODC will be fixed price and not include profit. ODC's do not include subcontractor labor and/or management costs.

The Offeror shall utilize the following "Plug" data for the respective cost proposal spreadsheet and apply any relevant indirect costs. The calculated amounts (ODC "plug" amounts plus indirect costs) from the spreadsheet may be used to complete Section B pricing.

Other Direct Costs (ODCs)	Base Period (CLIN 0002)	Option Period 1 (CLIN 1002)	Option Period 2 (CLIN 2002)	Option Period 3 (CLIN 3002)
Travel	\$44,150.00	\$44,150.00	\$47,150.00	\$47,150.00
Materials	\$2,125,200.00	\$2,125,200.00	\$2,125,200.00	\$2,125,200.00
Total ODCs	\$2,169,350.00	\$2,169,350.00	\$2,172,350.00	\$2,172,350.00

SUPPORTING DOCUMENTATION -

The Offeror shall provide a narrative describing the basis of estimate and any assumptions made by cost element to include:

Direct Labor Rates:

Methodology and rationale for determining direct labor rates, salary ranges and/or direct labor rate composite(s), as applicable.

If the Offeror does not currently have employees to fulfill the duties under a specific labor category under which they want to propose, the Offeror must explain its methodology for establishing prime contractor labor rates for such categories.

Escalation:

Methodology used to compute escalation for Years 2-4.

Subcontractors:

If the Offeror's proposed approach includes subcontractor(s), all proposed subcontractor teaming arrangements shall be included within the Offeror's Staffing Approach. If the Offeror's proposed approach includes subcontractor(s), the Offeror shall include a copy of subcontractor's sanitized cost proposal utilizing the format provided at Attachment 5. Cost data provided separately by a subcontractor shall be received by the time and date specified for receipt of proposals specified in this solicitation.

Subcontractors shall include the following information when sending directly to the Government contracting POCs identified in Section L-3:

Email Subject: "N0017325RDH03_Sub-Cost Proposal_SUB NAME_PRIME NAME"

Document Name: "N0017325RDH03_Sub-Cost Proposal_SUB NAME_PRIME NAME"

In accordance with FAR 15.404-3(b), the Offeror shall conduct appropriate price analysis to establish the reasonableness of each proposed subcontractor's price. The Offeror's Cost/Price Volume shall address how price reasonableness was determined for each proposed subcontractor.

Uncompensated Overtime:

The Offeror shall submit its policy on uncompensated overtime if proposed (see FAR 52.237-10), including the practices used to estimate uncompensated overtime.

Financial Capacity:

Apparent successful Offerors are subject to a responsibility determination in accordance with FAR Subpart 9.1. The Offeror shall indicate if it has the necessary financial capacity, working capital, and other resources to perform the contract without assistance from any outside source. If not, indicate the amount required and the anticipated source.

VOLUME IV - CONTRACT INFORMATION

SECTION A: SOLICITATION/CONTRACT FORM -

The Contractor shall complete blocks 15 and 16, and sign and date blocks 17 and 18 of the solicitation, and if applicable, block 14 for acknowledgement of all amendments. Signature by the Offeror on the solicitation constitutes an offer, which the Government may accept. The Offeror shall make a clear statement that the proposal is valid 180 days from the date of the solicitation closing date.

SECTION H: SPECIAL CONTRACT REQUIREMENTS -

Offeror's shall make an affirmative statement that no OCI exists, if applicable.

SECTION K: REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENT OF OFFERORS

- Completed representations, certifications, acknowledgements, and statements.

SECTION L: INSTRUCTIONS TO OFFERORS -

Any information required to be submitted regarding assertions.

OTHER -

Security Requirements: Offeror shall make a statement of compliance with all security requirements set forth in Attachment 2 - DD Form 254. Offeror shall provide an affirmative statement regarding its current & approved Facility Clearance. An inability to meet security requirements at the time of proposal submission will result in an offer being deemed nonresponsive and eliminated from the competition.

Exceptions to the Solicitation: FAR 52.215-1(c)(2)(iii) states that page 1 of an Offeror's proposal must show a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors. Failure to comply with the terms and conditions of the solicitation may result in the Offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale.

POTENTIAL ORGANIZATIONAL CONFLICTS OF INTEREST

Pursuant to FAR 9.5 and the definitions provided therein:

(a) Definitions

FAR 2.1 defines "Organizational Conflict of Interest" as a situation in which "...because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage." For the purposes of this contract, the term Organizational Conflict of Interest means that a relationship exists between the Contractor (including the successor-in-interest, assignee or affiliated divisions, subsidiaries, employees, consultants, or subcontractors, hereinafter referred to as "Contractor") and another in which the underlying interests of the Contractor and the other party directly or indirectly (1) may influence, affect or diminish the Contractor's ability to give impartial, technically sound, objective assistance, conclusions, advice or recommendations, or may otherwise result in a biased work product to or for the Government, or (2) may result in an unfair competitive advantage.

(b) Purpose

The primary purpose of this clause is to ensure that the Contractor (1) does not obtain an unfair competitive advantage over other parties by virtue of its performance of this contract, and (2) is not biased because of its current or planned interests (financial, contractual, organizational or otherwise) which relate to the work under this contract.

(c) Description of the Effort

This contract is for research and development activities in support of various NRL Programs. In the performance of this contract, the Contractor may be required to make certain findings, conclusions and recommendations to the Government. The Contractor may also be required to have access to other Contractor's proprietary data in order to make those findings, conclusions and recommendations to the Government. Because the Government requires total objectivity and impartiality in performance of this contract, the Contractor must be free from any biased influences and interests which will impact, directly or indirectly, on the Contractor's decision-making process.

(d) Disclosure Statement

If the Offeror **is** aware of circumstances that may hinder its ability to render impartial, technically sound, and unbiased assessments, recommendations and/or evaluations; or that circumstances exist that may result in the appearance that it may have any unfair competitive advantage, the Offeror shall provide a full disclosure statement. The statement must describe in a concise manner all relevant facts concerning any past, present or currently planned interest (financial, contractual, organizational, or otherwise) relating to the work to be performed hereunder and bearing on whether the Offeror has a possible organizational conflict of interest with respect to (1) impartial, technically sound, and unbiased assessments, recommendations and/or evaluations, or (2) being given an unfair competitive advantage. Prospective Offerors should refer to FAR 9.5 for policies and procedures for avoiding, neutralizing, or mitigating organizational conflicts of interest. **If the Offeror is not aware of any circumstances of this nature, then the Offeror shall provide a statement stating such.**

The Government will review the statement submitted and may require additional relevant information from the Offeror. All such information and any other relevant information will be used by the Government to determine whether an award to the Offeror may create an organizational conflict of interest. If found to exist, the Government may (1) impose appropriate conditions which avoid such conflict, (2) disqualify the Offeror, or (3) determine that it is otherwise in the best interest of the Government to contract with the Offeror by including appropriate conditions mitigating such conflict in the contract awarded.

The refusal to provide the disclosure of any additional information as required shall result in disqualification of the Offeror for award. The nondisclosure or misrepresentation of any relevant interest may also result in the disqualification of the Offeror for award, or if such nondisclosure or misrepresentation is discovered after award, the Government may terminate the contract for default, recommend that the Contractor be disqualified from subsequent related contracts, or be subject to such other remedial actions as may be permitted or provided by law. The attention of the Offeror in complying with this provision is directed to 18 U.S.C. 1001 and 31 U.S.C. 3802(a)(2).

If the Contracting Officer determines that a potential conflict exists, the prospective Offeror shall not receive an award unless the conflict can be avoided or otherwise resolved through the inclusion of a special contract clause or other appropriate means. The terms of this clause are subject to negotiation.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	Nov 2021		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Oct 2009		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7009	Proposal Adequacy Checklist.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.225-7003	Report of Intended Performance Outside the United States	Jan 2025		

FAR Clauses Incorporated by Full Text

52.216-1 Type of Contract. (Apr 1984)

Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest. (Sep 2006)

Service of Protest (Sep 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Jason Calandruccio jason.d.calandruccio.civ@us.navy.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be

completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) <https://www.acquisition.gov/browse/index/far>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement(48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section M - Evaluation Factors for Award

M-1 BASIS OF AWARD

The Government intends to make award to that responsible vendor whose proposal is determined to be the best overall value to the Government in accordance with the established criteria and rating methodology set forth in the RFP.

The evaluation will be based on a complete assessment of each Offeror's technical proposal, past performance information, and cost proposal. Within the best value continuum, the Government will employ a Price/Technical Tradeoff analysis of both price and non-price factors (FAR 15.101-1) in evaluating each proposal submitted. Trade-off considerations may result in the determination that it is in the best interest of the Government to award to other than the lowest priced Offeror or other than the highest technically rated Offeror. A best value analysis will not be performed or developed for any Offeror whose proposal is found to be technically unacceptable or unsatisfactory in any other factor.

All proposals shall be subject to evaluation by a team of Government personnel.

Proposals will be assessed on how well each Offeror's proposal meets the solicitation requirements and the risks associated with the Offeror's approach. Determining how well the Offeror's proposal meets the solicitation requirements will be accomplished in two steps. First, a determination will be made if the Offeror's proposal meets the solicitation requirements. Next, the discriminators will be identified for the proposals reflecting the unique significant strengths, strengths, weaknesses, significant weaknesses, and deficiencies of each offer. In addition, the Government will examine the benefit or risk to contract performance of each discriminator and assess its relative value to the Government. In order to make a sound selection decision, the Government needs to understand the ways in which a given proposal is considered technically strong, as well as the ways in which it is weak or deficient. Therefore, the Government will evaluate the identified significant strengths, strengths, significant weaknesses, weaknesses, and deficiencies (in terms of the evaluation criteria) to facilitate the process of determining which proposal presents the best overall value to the Government.

The Offerors will receive one overall rating value for the non-price proposal evaluation factors. Price, while being an important factor, is not in and of itself the determining factor in the selection of the successful Offeror for award of the contract contemplated by this solicitation. The Contracting Officer may reasonably determine that the superior personnel and staffing ability, technical understanding and capability, and/or management capability merits a higher price, and therefore represents the best value to the Government. The Contracting Officer, using sound business judgment, will base the selection decision on the integrated assessment of the Offeror(s)' non-price factors and price factor measured against the evaluation criteria listed below.

Award will only be made to an Offeror that has no OCI as defined in FAR 9.5 or that the Government determines has provided a satisfactory mitigation plan. Offerors are advised that Technical proposals may be evaluated without consideration of any proposed Subcontractor which is deemed to have an OCI and for which an unsatisfactory mitigation plan has been proposed. Failure by an Offeror that has identified a potential OCI or to submit an OCI mitigation plan with its proposal shall no longer being considered for award.

M-2 EVALUATION FACTORS FOR AWARD

The Government will evaluate each Offeror's proposal in accordance with the factors contained in Section L, as restated below, to determine the best value proposal. The evaluation factors represent key areas of importance to be considered in the source

selection decision. The factors and associated elements have been chosen to support meaningful discrimination between and among competing proposals. As demonstrated in each proposal, a prospective Offeror shall be evaluated in terms of its ability to meet or exceed the Government's requirements.

Each proposal shall be evaluated in accordance with the factors listed in the table below.

EVALUATION FACTORS
Factor 1 - Technical Understanding, Capability, and Approach
Factor 2 - Management Capability
Factor 3 - Staffing and Personnel Qualifications
Factor 4 - Past Performance
Factor 5 - Cost/Price

Order of Importance:

Factor 1 - Technical Understanding, Capability, and Approach, Factor 2 - Management Capability, and Factor 3 - Staffing and Personnel Qualifications are equally important. Factor 4 - Past Performance is more important than Factor 5 - Cost/Price.

Factor 1 - Technical Understanding, Capability, and Approach, Factor 2 - Management Capability, and Factor 3 - Staffing and Personnel Qualifications are each more important than Factor 4 - Past Performance, and Factor 5 - Cost/Price.

All evaluation factors other than cost or price, when combined, are significantly more important than Factor 5 - Cost/Price. However, as non-price factors become closer in perceived value, price considerations will become more important. Trade-off considerations may result in the determination that it is in the best interest of the Government to award to other than the lowest priced Offeror or other than the highest technically rated Offeror

To be considered for award, a rating of no less than "Acceptable" must be achieved for Factors 1 - 3. An "Unacceptable" evaluation rating for any factor will result in an "Unacceptable" Factor and will render the Offeror ineligible for award and no further analysis will be conducted.

M-3 EVALUATION OF FACTORS

FACTOR 1 - TECHNICAL UNDERSTANDING, CAPABILITY, AND APPROACH

The Government will evaluate the degree to which the Offeror's technical proposal adequately demonstrates the capability, knowledge, and approach, for both Prime and Subcontractors in performing all task areas identified at Section L-6, Factor 1. The degree to which the Offeror demonstrates an overall understanding of the scope of work and provides an approach to performing the tasks areas identified at Section L-6, Factor 1, with particular emphasis on projects with scientific, engineering and technical tasks similar in size, scope, and complexity to those required in the SOW. The documentation should be sufficient to support both the Prime and Subcontractors' breadth and depth of experience as it relates to the SOW and should clearly demonstrate:

- (1) The relationship between the company's experience and the tasks areas;
- (2) Prior or current programs in the task areas;
- (3) Key/critical aspects and challenges associated the task areas with a strategy to address/mitigate;
- (4) Technical understanding of all task areas; and
- (5) Feasibility of approach

FACTOR 2 - MANAGEMENT CAPABILITY

The proposal will be evaluated on the Offeror's demonstrated management capability and success in managing projects of similar complexity and size as that set forth in the SOW. The Government will evaluate the extent to which the Offeror's proposed approach for managing the contract effort, and its organizational structure, internal management and communications processes/tools, will enable successful performance of the SOW requirements.

The Government will evaluate whether the Offeror presents a management plan that provides an integrated team with a coordinated approach to work performance, demonstrates an adequate understanding of solicitation requirements, and demonstrates the Offeror's management ability and success in managing projects of similar size, scope, and complexity as that set forth in the SOW.

The proposal will also be evaluated on the adequacy of the Offeror's CMP demonstrating the contractor's plan for effective organizational management, internal management, communications processes/tools, quality control, risk management, Project Management, System Engineering, Research & Development, Systems Manufacture, Test & Evaluation (as applicable) and subcontract management to ensure services are performed in accordance with the SOW.

FACTOR 3 - STAFFING AND PERSONNEL QUALIFICATIONS

Staffing and Personnel Qualifications will be evaluated on the Offeror's ability to provide personnel in accordance with the Personnel Qualifications document to carry out SOW. For non-key personnel, the Offeror will be evaluated on its approach and ability to provide or to recruit, retain and train adequate staff with the requisite skill-sets and security clearances to meet the requirements of the SOW by the start of the contract period of performance.

If proposed, the Government will evaluate the subcontracting team breakout including the teaming partner's name; CAGE Code and associated active SAM registration, if applicable; major/minor subcontractor distinction; subcontract type and any additional risk this may bring to the Government; and the % of Total Labor Hours Performed by the subcontractor in correlation to the overall total hours proposed by the Offeror.

If cost reimbursement subcontractors do not comply with providing cost data at the level required herein, this may be viewed as indicative of the Prime contractor's inability to manage Subcontractor performance and may impact the Staffing and Personnel Qualifications evaluation result.

The proposal will be evaluated on the availability of proposed key personnel to support the effort, and the extent to which the proposed key personnel satisfy the minimum required qualifications for key personnel. The evaluation will consider any qualifications that exceed the minimum qualifications (e.g., greater education, additional years of experience, relevant experiences, certifications, etc...) and whether those qualifications will benefit the Government.

The Government will evaluate the degree to which required resumes demonstrate the Offeror's knowledge and ability to successfully meet requirements of the SOW and related competencies, the relevant experience the proposed personnel have in performing each of the SOW task areas, the level of the personnel's relevant education and training, the personnel's security clearances, and the overall quality of key personnel proposed (resumes).

The Government will evaluate the Offeror's demonstrated ability to provide the specific personnel to this effort. Failure to submit resumes, Subcontract agreements, or LOI(s) for key personnel, as required, will result in an unacceptable rating.

Key personnel, as identified in this solicitation, shall be currently employed by the Offeror or documentation included showing their immediate availability. A statement of commitment by the Offeror that specific personnel will be committed to the effort is essential, and the amount of effort each will be performing. Failure to submit the appropriate documentation showing the availability of the proposed key personnel may result in an unacceptable rating, rendering the proposal unawardable.

FACTOR 4 - PAST PERFORMANCE

Past performance is a measure of the degree to which the Offeror satisfied its customers in previous relevant contracts and complied with Federal, State, and local laws and regulations. Each Offeror's (and major subcontractor, team partner, etc., if applicable) past performance will be reviewed to determine recency, relevancy, and the quality of performance on the past contracts. A past performance relevancy rating and confidence assessment rating will be assigned based on the Offeror's overall record of recency, relevancy and quality of performance.

The Government will evaluate submitted CPARS reports, PPQs, and Previous Contract Effort Narratives, and may contact the Offeror's customers to ask whether or not they believe: (1) that the Offeror is capable, efficient and effective; (2) that the Offeror's performance conformed to the terms and conditions of its contract; (3) that the Offeror was reasonable and cooperative during performance; (4) that the Offeror was committed to customer satisfaction; and (5) if given a chance would they select the same or a different Contractor.

The Government may consider past performance information obtained from sources other than those identified by the Offeror to evaluate an Offeror's or subcontractors' past performance, including Federal, State, and local Government agencies, Better Business Bureaus, published media and electronic databases. The lack of recent and relevant past performance information will result in the assignment of a neutral rating (i.e. neither favorable nor unfavorable) for this factor. The Government reserves the right to limit or expand the number of references it decides to contact and to contact other references than those provided by the Offeror or subcontractors.

FACTOR 5 - COST/PRICE

Cost/Price evaluation will be based on an analysis of the completeness of the cost and pricing data, and reasonableness. Cost Completeness means the proposed costs are adequately identified, estimated and supported. Cost/Price evaluation will be completed at the Prime and subcontractor levels.

Cost reasonableness (FAR 31.201) is defined as reasonable if the cost does not exceed the amount incurred by a prudent person in the conduct of a competitive business. The overall evaluated price, inclusive of base and all options, shall be evaluated to ensure that it is fair and reasonable.

If proposed, the Government will evaluate the Prime's subcontracting teaming arrangement and each subcontractor's unsanitized cost proposal for fair and reasonableness. In accordance with FAR 15.404-3(b), the Offeror shall conduct appropriate price analysis to establish the reasonableness of each proposed subcontractor's price. The Government will evaluate how the Prime determined price reasonableness for each subcontractor proposed.

M-4 EVALUATION METHODOLOGY

Proposals will be reviewed first to determine the adequacy of the response in complying with the requirements of the RFP, including proposal submission instructions and mandatory security requirements.

M-4-1 TECHNICAL EVALUATION METHODOLOGY

Factor 1 - Technical Understanding, Capability, and Approach, Factor 2 - Management Capability, and Factor 3 - Staffing and Personnel Qualifications are considered Technical Factors and will be evaluated and rated using the following Evaluation Methodology.

A combined Technical/Risk Rating methodology will be used to determine the rating of each factor.

The combined Technical/Risk Ratings, excerpted below, focuses on consideration of risk in conjunction with the significant strengths, strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings of the Offeror's proposal. The color rating depicts how well the Offeror's proposal meets Factor 1-3 requirements.

The following adjectival ratings and rating definitions will be used for each of the three factors. Each factor will be assigned a Technical/Risk Rating:

COMBINED TECHNICAL / RISK RATING

COLOR	RATING	DESCRIPTION

Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

The associated risk descriptions are as follows:

RISK	DESCRIPTION
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

Significant strengths, strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies ratings in the description block of the above two tables are defined as follows:

Rating	Definition
Significant Strength	An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
Strength	An aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Weakness	A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.
Significant Weakness	A flaw that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.
Uncertainty	An aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).
Deficiency	A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

NOTE: To be considered for award, a rating of no less than "Acceptable" must be achieved for each technical factor.

M-4-2 PAST PERFORMANCE EVALUATION METHODOLOGY

The Government will evaluate the Offeror's (and subcontractor, team partner, etc., if applicable) record of past and current performance within the last five years from date of this solicitation release to ascertain the probability of successfully performing the required efforts of the SOW. Absent any recent and relevant past performance history or when the performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned, the Offeror will be assigned a "neutral rating" and its proposal will not be evaluated either favorably or unfavorably on past performance.

There are three aspects to the past performance evaluation: recency, relevancy and quality, which will form the basis of the performance confidence assessment:

RECENCY:

The first aspect of the past performance evaluation is to assess the recency of the Offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant, and is critical to establishing the relevancy of past performance information. For this acquisition, recency is defined as past performance references within the last five years as of the date of this solicitation release.

RELEVANCY:

The second aspect of the past performance evaluation is to assess the Offeror's past performance to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. The following criteria will be used to establish what is relevant, which shall include similarity of service/support, complexity; dollar value, contract type, and degree of subcontract/teaming.

PAST PERFORMANCE RELEVANCY RATING:

RATING	DESCRIPTION
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

QUALITY:

The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance by determining how well the contractor performed on the recent and relevant contracts. The past performance evaluation conducted in support of this source selection does not establish, create, or change the existing record and history of the Offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the Offeror performed those past contracts. Evaluators will review all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment. A separate quality assessment rating is not required; rather, the past performance confidence assessment rating is based on the Offeror's overall record of recency, relevancy, and quality of performance.

PERFORMANCE CONFIDENCE ASSESSMENT:

The final step is to arrive at a single consensus performance confidence assessment for the Offeror, selecting the most appropriate rating from the chart below. This rating considers the assessed quality of the relevant/recent efforts gathered:

PERFORMANCE CONFIDENCE ASSESSMENT:

RATING	DESCRIPTION
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.

Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

M-4-3 COST/PRICE EVALUATION METHODOLOGY

The Cost/Price proposals will be evaluated for reasonableness and completeness in accordance with FAR Part 15.404-1. Cost, while being an important factor, is not in and of itself the determining factor in the selection of successful Offeror for award of the contract contemplated by this solicitation. The total evaluated amount of the proposed costs will be used in determining best value.

The Cost/Price proposals will be evaluated using the analysis techniques at FAR 15.404-1, including but not limited to the following:

COST ANALYSIS:

The Government anticipates establishing reasonableness of pricing through adequate price competition and does not require submission of certified cost or pricing data. As such, and IAW FAR 15.305(a)(1) and 15.404-1(3), cost analysis is not required.

The Offeror's proposed escalation will be evaluated in accordance with current and projected rates from the Department of Labor (DOL), Bureau of Labor Statistics (BLS), and/or other market resources.

PRICE ANALYSIS:

Each Offerors' evaluated prices, inclusive of base and all options, shall be evaluated to ensure that it is fair and reasonable. The Government intends to make a determination of fair and reasonable pricing on the basis of adequate competition. However, in accordance with FAR 15.404-1, the Government may use any of the analytical techniques previously noted as a stand-alone or in combination to determine that the final price is fair and reasonable.

If after receipt of proposals, the Contracting Officer determines that adequate price competition does not exist and a determination is made that none of the exceptions in FAR 15.403-1(b) apply, the Offeror may be required to provide certified cost and pricing data in accordance with FAR 15.403-4.

M-5 ONE OFFER

In the event that only one proposal is received, the Government reserves the right to conduct a less formal evaluation of the proposal (e.g. a single technical representative may evaluate the technical proposal). A technical analysis of the proposal will be performed to determine the extent in which it meets and/or exceeds the elements/requirements contained in the evaluation factors for award. A report will be prepared detailing the findings and recommendations to the SSEB. Certified Cost and Pricing Data will be obtained from the Offeror.

M-6 COMPETITIVE RANGE DETERMINATION AND DISCUSSIONS

The Government intends to make award without discussions. Therefore, each initial offer should contain the Offeror's best terms from a technical and cost/price standpoint. The Government reserves the right to conduct discussions if determined to be necessary and/or in the best interest of the Government IAW FAR 15.306(a)(3). Clarifications and award without discussions will be conducted in accordance with FAR 15.306(a)(2). If the Government decides to open discussions and establish a competitive range, the competitive range may be reduced for purposes of efficiency to the greatest number that will permit an efficient competition in accordance with FAR 15.306(c)(2).

M-7 FINAL PROPOSAL REVISIONS

If discussions are deemed necessary with Offerors, upon completion of those discussions, the Contracting Officer will request that the Offerors provide a Final Proposal Revision (FPR). Revisions to any volume(s) shall be submitted by providing two electronic copies, one "clean" copy, and one with "track changes." The Offeror is advised that any changes to the proposal in the FPR should be fully addressed and/or explained and reflected in the proposed price. Failure to comply with this requirement can adversely influence the evaluation of the proposal. The Contracting Officer will establish a common due date and time for submission of the FPR.

When FPRs are requested, any revisions or non-compliance with terms and conditions submitted in the FPR may not be subject to further discussion or negotiation and may render the offer unacceptable to the Government. This provision is not intended to restrict the Offeror's opportunity to revise figures, (e.g., prices, discounts, or percentage rates). Rather, it is intended to preclude any misunderstandings by the Government that could result if new or revised terms and conditions submitted in the FPR have not been fully disclosed, discussed, and understood during discussions or negotiations.

M-8 SOLICITATION REQUIREMENTS, TERMS AND CONDITIONS

Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors. Failure to comply with the terms and conditions of the solicitation may result in the Offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale. Offerors failure to complete or omission of required data for evaluation or award may make them ineligible for award evaluation and/or subsequent contract award.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-3	Evaluation Exclusive of Options.	Apr 1984		